

		While counsel for Defendant contacted Plaintiff's counsel following Plaintiff's non-appearance on 11/24/25, there is no indication Defendant's counsel did so after the non-appearance on 12/22/25 as required by section 2025.450, subdivision (b)(2). As Defendant did not comply with Code of Civil Procedure section 2025.450, subdivision (b)(2), the Court DENIES Defendant Rosmar Rodriguez Gasco's motion to compel deposition.
2.	CAO VS. GENERAL MOTORS, LLC 2024-01409133	MOTION TO COMPEL DEPOSITION (ORAL OR WRITTEN) Plaintiff Derick Cao's Motion to Compel Defendant General Motors LLC to designate and produce for deposition, Defendant's Person(s) Most Qualified on all categories identified in Plaintiff's Notice of Deposition of the Person Most Qualified for Defendant and Demand to Produce Documents at Deposition is GRANTED in part. This hearing was continued due to the parties' inadequate meet and confer efforts. (ROA 156 [5/5/26 Minute Order].) The parties subsequently agreed to a deposition date of 6/10/26 and Plaintiff served an amended deposition notice. (ROA 172 [Song Decl., ¶¶ 3-4, Exs. 1-2, 4].) Since Plaintiff served an amended deposition notice for a future date, Defendant has not yet failed to comply with the operative deposition notice. The parties are ORDERED to proceed with the 6/10/26 deposition on the agreed upon categories of examination and document requests. If Defendant fails to appear or if Defendant appears and fails to answer questions and/or produce documents, Plaintiff's is to file the appropriate motion.
3.	BLATT VS. COUNTY OF ORANGE 2025-01481733	MOTION FOR PREFERENCE Plaintiff Eleanor Blatt's Motion for Trial Preference is GRANTED. Plaintiff seeks an order for trial preference pursuant to Code of Civil Procedure 36, subdivision (a). “(a) A party to a civil action who is over 70 years of age may petition the court for a preference, which the court shall grant if the court makes both of the following findings: [¶] (1) The party has a substantial interest in the action as a whole. [¶] (2) The health of the party is such that a preference is necessary to prevent prejudicing the party's interest in the litigation.” (§ 36(a).) The statute does not require “death or incapacity.” (<i>Fox v. Superior Court</i> (2018) 21 Cal.App.5th 529, 534 (<i>Fox</i>).) “Provided there is evidence that the party involved is over 70, all subdivision (a) requires is a showing that that party's ‘health ... is such that a preference is necessary to prevent prejudicing [her] interest in the

litigation.’ ” (Ibid. (italics in original).) Section 36 “was enacted for the purpose of assuring that an aged or terminally ill plaintiff would be able to participate in the trial of his or her case and be able to realize redress upon the claim asserted.” (Looney v. Superior Court (1993) 16 Cal.App.4th 521, 532.) “An affidavit submitted in support of a motion for preference under subdivision (a) of Section 36 may be signed by the attorney for the party seeking preference based upon information and belief as to the medical diagnosis and prognosis of any party.” (Code Civ. Proc. § 36.5; Fox, supra, 21 Cal.App.5th at p. 534.)

Plaintiff has satisfied the requirements of section 36. The evidence shows Plaintiff is a 90-year-old woman who suffers from metastatic breast cancer and recurrent anemia. (Blatt Decl. ¶ 3.) Dr. Blatt has been under active treatment for metastatic cancer. (Blatt Decl. ¶ 3.) She was originally diagnosed with breast cancer in or about July 2023, underwent surgery and radiation treatments from approximately October 2023 through March 2024, and has had continuous testing and monitoring ever since. (Blatt Decl. ¶ 3.) Dr. Blatt recently suffered a severe medical crisis requiring emergency transport by paramedics to the Emergency Department. She was admitted to the hospital for four days, during which she presented with critical anemia requiring blood transfusion, extremely low blood oxygen levels necessitating supplemental oxygen, breathing/inhalation therapy treatments, intravenous antibiotics, and intravenous steroids. (Blatt Decl. ¶ 4.) Dr. Blatt’s condition remains fragile, and her advanced age combined with metastatic cancer places her at significant risk of further rapid decline. (Blatt Decl. ¶ 5.)

Dr. Eleanor Blatt is the Plaintiff in this action; therefore, the requirement that the party have a substantial interest in the action is met. (*Swaithes v. Superior Ct.* (1989) 212 Cal.App.3d 1082, 1086 (*Swaithes*) [“Elderly litigants are clearly entitled to have their case effectively tried and to the opportunity to enjoy *during their own lifetime* any benefits received.” (Italics in original.)].)

Defendants oppose the motion arguing Plaintiff’s supporting declaration from her daughter, Nicole Blatt, does not support the conclusion that Plaintiff’s health is such that a preference is necessary to prevent prejudicing Plaintiff’s interest in the litigation. For example, Defendants contend that “[a]lthough Plaintiff has treated for breast cancer, Nicole Blatt’s declaration strongly implies that Plaintiff’s treatment for breast cancer was successful and Plaintiff is currently just being monitored and tested, presumably to confirm that she remains cancer-free.” (Opp. p. 3:12-14.)

Defendants’ attempt to downplay Plaintiff’s current health condition is not well taken. First, Defendants provide no medical basis for the suggestion that once a 90-year-old person’s metastatic breast cancer treatment is successful, she is “just” fine. Second, Defendant’s reliance on Plaintiff’s ability to travel to Florida in 2024, after her

		chemotherapy treatment ended, is unpersuasive. Plaintiff's ability to travel in September 2024 does not demonstrate she has the ability to meaningfully participate at a trial scheduled to occur nearly two years later. Third, and most importantly, Nicole Blatt's declaration is uncontroverted and based on her personal knowledge of Plaintiff's current condition rather than merely on information and belief. (See Code Civ. Proc., § 36.5 [allowing attorney declaration based upon information and belief as evidence of moving party's health].) Further, "[t]he heightened clear and convincing proof standard is required for motions seeking discretionary grants of preference under [Code Civ. Proc. Section 36], subdivision (d), but not for motions seeking mandatory preference under subdivision (a)." (<i>Fox, supra</i>, 21 Cal.App.5th at 534.) Thus, Plaintiff has presented sufficient evidence of her health condition. Defendants also argue they will be prejudiced if the motion is granted. However, weighing prejudice is not part of the § 36(a) analysis, as Defendants themselves acknowledge. (See Opp. p. 4:17-18; <i>Swaithes, supra</i>, 212 Cal.App.3d at p. 1085 ["The trial court has no power to balance the differing interests of opposing litigants in applying the provision."].) The court declines Defendants' invitation to do so. Lastly, the parties' respective discussions of delay and the status of discovery is irrelevant. "Failure to complete discovery or other pre-trial matters does not affect the absolute substantive right to trial preference for those litigants who qualify for preference under subdivision (a) of section 36." (<i>Swaithes, supra</i>, 212 Cal.App.3d at p. 1085.) Based on the foregoing, the motion for preference is GRANTED. Trial is set for 9/18/26 (108th day) at 9:00 a.m. in Dept. C32. Plaintiff to give notice.
4.	GUNN VS. GREEN MEADOWS HOME HEALTH CARE, INC 2023-01370855	1. MOTION FOR LEAVE TO FILE AMENDED COMPLAINT Plaintiff's Motion to Amend Complaint is GRANTED. Code of Civil Procedure section 473(a)(1) states, "The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code."